

23CHCV00418 23CHCV00418

County: los-angeles

Division: Civil Law and Motion

Department: F51

Hearing date: 2026-09-22

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF51%2C09%2F22%2F2026

Source SHA-256: 8a95f69f06de32b7ddd2adf0b59d022640a4e0fa8ab3b59dfca22d9b75f8e551

Case Number: 23CHCV00418 Hearing Date: September 22, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

SEPTEMBER 21,

2026

MOTION FOR

ATTORNEY FEES

Los Angeles Superior Court Case # 23CHCV00418

Motion Filed: 6/4/26

MOVING PARTY: Plaintiffs Emmanuel Gutierrez-Munoz;
Kevin Zaguilan; and Reyna Espino (collectively, "Plaintiffs")

RESPONDING PARTY: Defendant Ford Motor Company
("Defendant")

NOTICE: OK

RELIEF REQUESTED: An order granting Plaintiffs their attorney

fees and costs in the amount of \$37,953.47.

TENTATIVE RULING: The motion is granted in part.

Plaintiffs are awarded \$26,175.47 in attorney fees and costs.

BACKGROUND

On 7/14/19, Plaintiffs allegedly purchased a vehicle from dismissed defendant Sunrise Ford of North Hollywood ("Sunrise"), manufactured by Defendant, and now bring this action under the Song-Beverly Consumer Warranty Act (Civil Code § 1790 et seq.), alleging that defects and nonconformities manifested themselves during the warranty period. (SAC ¶¶ 10–11.) Plaintiffs presented the subject vehicle to Defendants for repair on numerous occasions, but Defendants were unable to "unable to repair the vehicle in accordance with the written warranty or the consumer protection and warranty laws of the State of California." (Id. at ¶¶ 7, 69–78.)

On 2/15/23, Plaintiffs filed their original complaint, alleging the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty (against Defendant); (2) Violation of Song-Beverly Act section 1793.2 (against Defendant); and (3) Negligent Repair (against Sunrise). On 8/11/23, after the Court sustained a demurrer against Plaintiffs' third cause of action, Plaintiffs filed their first amended complaint ("FAC"), alleging the same causes of action.

On 9/20/24, Plaintiffs filed their SAC, alleging the following causes of action against Defendant: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act section 1793.2; and (3) Fraudulent Inducement – Concealment.

On 4/10/26, the parties executed a settlement offer pursuant to Code of Civil Procedure section 998, settling entire lawsuit. (Ex. C to Decl. of Roger Kirnos.) On 4/24/26, Plaintiffs filed a Notice of Conditional Settlement of the entire case.

On 6/4/26, Plaintiffs filed the instant motion and their Memorandum of Costs. On 9/9/26, Defendant filed its opposition. On 9/15/26, Plaintiffs filed their reply.

ANALYSIS

A.

Right to Recovery

An award of

attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b); 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer “to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code § 1794, subd. (d).)

Moreover, Plaintiffs

base the instant motion on the parties’ settlement agreement, wherein the parties agreed that “Plaintiffs shall retain the right to petition the Court for an award of reasonably and actually incurred attorney fees and costs against Ford recoverable pursuant to California Code of Civil Procedure Section 1794(d). ... Ford will pay the attorney fees and cost amounts determined by the Court within 30 days’ written notice of entry of the Court’s ruling awarding those amounts.” (Ex. C to Kirnos Decl., ¶ 2.)

Based on

the foregoing, the Court finds that the instant motion is authorized both by contract and statute.

B.

Attorney Fees Incurred

A buyer prevailing

under the Song-Beverly Act may recover “reasonable” attorney fees and costs as determined by the Court. (Civ. Code § 1794, subd. (d).) “The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gonzalez v. Santa Clara County Dept. of Social Services (2017) 9 Cal.App.5th 162, 169.) In determining a reasonable fee award, the Court begins with the lodestar method of calculation, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Karton v. Ari Design & Construction, Inc. (2021) 61 Cal.App.5th 734, 744; PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095–1096.)

Here,
Plaintiffs seek to recover \$27,752.50, encompassing 67.3 hours of their attorneys' time, plus an anticipated \$2,750.00 in fees, billed at the following rates:

//

//

//

Name

Title

Hourly Rate

Hours

Total

Armando Lopez

Associate

Attorney

\$375.00

3.3

\$1,237.50

\$400.00

15.4

\$6,160.00

\$450.00

14.5

\$6,525.00

Colby
Meagle

Associate
Attorney

\$400.00

3.4

\$1,360.00

Chris
Swanson

Partner

\$575.00

7.0

\$4,025.00

Elvira
Kamosko

Associate
Attorney

\$350.00

5.0

\$1,750.00

Heidi

Alexander

Associate
Attorney

\$395.00

1.4

\$553.00

Jacqueline
Martinez

Law Clerk

\$175.00

3.3

\$577.50

Phil Thomas

Associate
Attorney

\$450.00

1.4

\$630.00

Roger
Kirnos

Managing
Partner

\$550.00

0.8

\$440.00

\$600.00

0.3

\$180.00

Sundeep Samra

Partner

\$375.00

1.1

\$412.50

Zachary Powell

Senior Attorney

\$425.00

4.2

\$1,785.00

\$475.00

1.6

\$760.00

Marianna Collazo Robles

Attorney

\$295.00

4.6

\$1,357.00

Total

67.3

\$27,752.50

(Ex. A to Kirnos Decl.)

1. Counsel's

Hourly Rate

When

determining a reasonable hourly rate, courts consider whether the stated rates “are within the range of reasonable rates charged by and judicially awarded [to] comparable attorneys for comparable work.” (Children's Hosp. & Med. Ctr. v. Bonta (2002) 97 Cal.App.4th 740, 783.)

Here,

Plaintiffs assert that the rates charged by their attorneys are commensurate with the experience and skill of the attorneys involved, and have been approved by courts in the past. (Pls.' Mot. 11:5–8; Kirnos Decl. ¶¶ 23–30.) In opposition, Defendant argues “given the unreasonable rates, the lack of consistency with the billing rates, the cookie-cutter nature of their work, and given the suspect nature of the time entries themselves, the Court should award rates no more than \$275 for non-partners and \$350 for partners.” (Def.'s Opp. 8:1–3.)

The Court

finds that Plaintiffs have sufficiently shown that their attorneys' hourly billing rates are commensurate with their experience, and fall within the range of reasonable rates charged by attorneys in similar cases. Accordingly, the Court declines to reduce Plaintiffs' counsel's hourly billing rates.

2. Hours

Expended

Plaintiffs

seek to recover attorney fees for the 67.3 hours expended by their attorneys on this matter, totaling \$27,752.50. Plaintiffs proffer an itemized list of time entries detailing their attorneys' work on this matter. (Ex. A to Kirnos Decl.)

Defendant

challenges the following specific entries in Plaintiffs' attorneys' proffered time log: (1) time billed in connection with Plaintiffs' Negligent Repair and Fraud causes of action; (2) unreasonable/template work; (3) the instant fee motion; and (4) impermissibly blockbilled entries/clerical work.

a.

Negligent Repair/Fraud Causes of Action

Defendant

argues that "the only causes of action that Plaintiffs are entitled to fees on is in relation to their Song-Beverly Act claims," therefore "the 9.0 hours for \$3,743.00 related only to Plaintiffs' negligent repair and fraud causes of action should be excluded entirely, as they do not pertain to Plaintiffs' Song-Beverly claims at all." (Def.'s Opp. 10:24–25, 12:6–8.)

In

opposition, Plaintiffs argue that "a court need not apportion fees between Song Beverly and fraud causes of action because the tasks performed to gather the evidence required to establish the allegations for both involve a common core of facts and apportionment in these lemon law cases is both impractical and impossible." (Pls.' Reply 9:2–4, citing *Santana v. FCA US LLC* (2020) 56 Cal.App.5th 334, 347–348.) Defendant asserts that "if that were the case, it would establish that Plaintiffs' negligent repair and fraud claims were based on the Song-Beverly Act claims after all — and thus barred by the economic loss rule, contrary to Plaintiffs' own position. Plaintiffs cannot have it both ways: they cannot argue that their negligent repair and fraud claims are independent and based on separate conduct yet simultaneously lump all fees together under the guise that the claims are sufficiently intertwined to avoid apportionment." (Def.'s Opp. 12:12–17.) The Court agrees.

Based on

the foregoing, the Court reduces the time actually incurred by Plaintiffs' counsel by 9.0 hours (7.4 hours by AL, 1.4 hours by HA, 0.2 hours by CAM) for a total reduction of \$3,743.00.

b.

Unreasonable/Template Work

Defendant

further argues that "Plaintiffs seek reimbursement for myriad suspect and unreasonable charges," including for various discovery and case management efforts. (Def.'s Opp. 12:22–23, citing Ex. C to Decl. of Hannah M. Biemann.) Defendant asserts that "all of the billing entries from Castillo Law Attorneys ('CLA') should likewise be excluded because attorney Marianne Collazo is not licensed to practice law in California." (Def.'s Opp. 12:24–25.) In reply, Plaintiffs argue that Ms. Collazo "is effectively operating as a law clerk under the supervision of California-licensed attorneys for purposes of this case. ... Paralegals, legal assistants, and unlicensed attorneys may all assist on cases as long as they are supervised and the work is signed by a licensed attorney." (Pls.' Reply 7:24–8:1.) The Court agrees, and therefore declines to strike the time incurred by Ms. Collazo.

Defendant

further argues that the time Plaintiffs' counsel incurred in preparing a motion to compel Defendant's further responses to Plaintiffs' Special Interrogatories, Set One, should be excluded because the Court denied the motion on 2/6/24. (Def.'s Opp. 12:27–13:3.) Plaintiffs argue in reply that "the suggestion that Plaintiffs not only have to be the prevailing party but also must win on every single dispute in the case to be fully reimbursed lacks any legal authority, and Ford does not attempt to provide any." (Pls.' Reply 8:10–12.) The Court agrees, and therefore declines to strike these time entries.

Defendant

further argues that Plaintiffs cannot recover for time incurred in preparing their motion to compel Defendant's further responses to Plaintiffs' Requests for Production of Documents ("RFPs"), Set One, because Defendant already paid court-ordered sanctions in connection with the motion. (Def.'s Opp. 13:4–7.) In reply, Plaintiffs assert that they "have already deducted the sanctions that were paid, and a Court's determination as to how much in sanctions to order is rarely the same analysis as what time was reasonably incurred." (Pls.' Reply 8:24–26.) The Court agrees, and therefore declines to strike these time

entries.

Defendant

further argues that on 12/18/23, Plaintiffs' counsel billed time entries relating to a stipulated trial continuance prior to the Court setting the trial date in this matter. "There is no need for trial continuance before the trial date was set. There is also no record of a stipulation for trial continuance served for this case around this time." (Def.'s Opp. 13:10–11, citing Ex. A to Kirnos Decl., p. 3.) The Court notes that Plaintiffs do not address this argument in reply. Accordingly, the Court strikes these time entries and reduces the time actually incurred by Plaintiffs' counsel by 0.3 hours (by AL) for a reduction of \$112.50.

Defendant further

argues that the time incurred by Plaintiffs' counsel to prepare and argue Plaintiffs' motions to compel Defendant's further responses to Plaintiffs' second set of Special Interrogatories and RFPs is excessive. (Def.'s Opp. 13:12–20.) The Court notes the template nature of discovery efforts in Song-Beverly cases, and therefore reduces the time actually incurred for these tasks by 6.85 hours (2.3 hours by MCR, 3.85 hours by AL, 0.7 hours by ZP), for a total reduction of \$2,743.50.

c.

Fee Motion

Plaintiffs'

counsel billed 1.9 hours (by CS) to prepare the instant fee motion, and anticipates another 4.0 hours (by CS) for reviewing Defendant's opposition, drafting Plaintiffs' reply, and appearing at the hearing. (Ex. A to Kirnos Decl., p. 11.) Defendant argues that "Plaintiffs' Motion and supporting documents are heavily based on cookie-cutter templates, and the time spent 'preparing' these documents is excessive." (Def.'s Opp. 13:24–26.) Defendant therefore asserts that "Plaintiffs' counsel's requested fees for the instant Motion should be rejected altogether, or, at a minimum, significantly reduced to no more than \$687.50." (Id. at 14:12–13.)

In reply,

Plaintiffs' counsel reduced the requested anticipated fees to 3.7 hours (by CS). (Decl. of Chris Swanson ¶ 4.) Based on the foregoing, the Court reduces the total time incurred in association with the fee motion by 0.3 hours (by CS),

for a reduction of \$172.50.

d.

Blockbilling; Internal Communications; Clerical
Work

Defendant

further argues that “Plaintiffs should not be awarded for block-billed time (0.7 hours for \$280.00), internal communication and administrative tasks (1.1 hours for \$510.00), or clerical work (0.1 hour for \$42.50) billed by some of the firm’s highest-rate attorneys.” (Def.’s Opp. 14:17–19.)

Defendant

argues that Plaintiffs’ counsel’s blockbilled time entry on 12/4/24 prevents the Court to evaluate the reasonableness or necessity of each task, or the time spent on each. (Id. at 14:24–15:1; Ex. C to Biemann Decl., p. 20.) The Court agrees that this time entry constitutes impermissible block-billing, and reduces the entries by 20 percent (0.7 hours by CAM), for a reduction of \$56.00.

Defendant

further argues that “1.1 hours for \$510.00 related to internal communication and administrative work are unnecessary and should be excluded.” (Def.’s Opp. 15:23–24.) However, the Court agrees with Plaintiffs that the challenged time entries are not purely administrative. (Pls.’ Reply 7:21–23 [“Ford claims (as evidenced by its billing exhibits) that drafting summaries after a hearing or depositions are somehow internal communications, as if attorneys are expected to retain all knowledge of a case without writing anything down.”].) The Court therefore declines to strike these time entries.

Defendant

further argues that “the Court should reduce a further 0.1 hour (\$42.50) for clerical tasks that were billed by trial and senior attorneys with excessive hourly rates.” (Def.’s Opp. 16:1–2; Ex. C to Biemann Decl., p. 21.) As the Court finds that this task was not clerical in nature, the Court declines to strike this time entry.

C.

Multiplier

“Once the

lodestar has been calculated, the second step is to apply any positive or negative multipliers. The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (Santana, 56 Cal.App.5th at 351 [internal quotations omitted].) "Perhaps the most common multiplier applied, at least where a plaintiff prevails, is a modifier for the contingent nature of the representation." (Ibid.) Whether a multiplier is applied to adjust the lodestar amount based on the contingent nature and risk associated with the action and other factors, such as degree of skill required and ultimate success achieved is within the discretion of the trial court.

Here,

Plaintiffs argue that they are entitled to recover a 1.25 multiplier enhancement because their attorneys obtained a favorable outcome, counsel works on a contingency basis, and Defendant has delayed in payment of settlement monies. (Pls.' Mot. 13:2–13.) Defendant argues in opposition that "here, there was nothing novel or complex about this simple Song-Beverly case, it involved no special skill or ability." (Def.'s Opp. 17:17–18.) Moreover, Defendant observes that "the Act contains a provision allowing recovery of attorneys' fees, thus reducing the chance that Plaintiffs' counsel would not be compensated for its work." (Id. at 17:1–2.)

Based on

the foregoing, the Court finds that a multiplier enhancement is not warranted in this case. While Plaintiffs ultimately prevailed, the action appears to have been a relatively straightforward Song-Beverly case. As such, the Court finds the lodestar fee award sufficient to compensate Plaintiffs' counsel.

D.

Costs Incurred

If the

charges listed on a submitted memorandum of costs appear to be proper charges on their face, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (Ladas v. California State Auto. Ass'n (1993) 19 Cal.App.4th 761, 774–776.)

Here,

Plaintiffs assert that they incurred costs and expenses totaling \$5,250.47, which encompasses: (1) \$738.30 in filing and motion fees; (2) \$150.00 in jury fees; (3) \$3,081.25 in deposition costs; (4) \$103.50 in process server fees; and (5) \$486.59 in other costs for messenger services, mediation costs, court appearance professionals, and minute orders. (6/4/26 Mem. of Costs.)

Defendant

argues that Plaintiffs' memorandum of costs should be taxed in its entirety because "Plaintiffs do not provide any explanation, invoice, or receipts to support their claim for costs. Without more, it is impossible to determine whether these costs are authorized by any provision of Code of Civil Procedure section 1033.5, or whether they were reasonably or actually incurred." (Def.'s Opp. 18:5–8.) Defendant further argues that "Plaintiffs should not be allowed to introduce the required supporting documentation for costs on reply or in a memorandum of costs." (Id. at 18:19–20.) The Court is not persuaded and finds that the costs listed on Plaintiffs' memorandum of costs appear to be proper on their face.

Based on

the foregoing, the Court finds it reasonable to award Plaintiffs \$26,175.47 in attorney fees and costs, as outlined below:

Name

Title

Hourly Rate

Hours

Total

Armando Lopez

Associate Attorney

\$375.00

1.8

\$675.00

\$400.00

12.8

\$5,120.00

\$450.00

7.05

\$3,172.50

Colby Meagle

Associate Attorney

\$400.00

3.06

\$1,224.00

Chris Swanson

Partner

\$575.00

6.7

\$3,852.50

Elvira Kamosko

Associate Attorney

\$350.00

5.0

\$1,750.00

Heidi Alexander

Associate Attorney

\$395.00

0

\$0.00

Jacqueline Martinez

Law Clerk

\$175.00

3.3

\$577.50

Phil Thomas

Associate Attorney

\$450.00

1.4

\$630.00

Roger Kirnos

Managing Partner

\$550.00

0.8

\$440.00

\$600.00

0.3

\$180.00

Sundeep Samra

Partner

\$375.00

1.1

\$412.50

Zachary Powell

Senior Attorney

\$425.00

4.2

\$1,785.00

\$475.00

0.9

\$427.50

Marianna Collazo Robles

Attorney

\$295.00

2.3

\$678.50

Subtotal

50.71

\$20,925.00

Costs

\$5,250.47

Total

\$26,175.47

CONCLUSION

The motion is granted in part. Plaintiffs are awarded \$26,175.47 in attorney fees and costs.